ASSOCIATION OF SPINE SURGEONS OF INDIA

MEMORANDUM OF ASSOCIATION OF SPINE SURGEONS OF INDIA

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1. Preamble

1.1 This constitution is the foundation document & guiding force of the Association. All members including the office bearers are expected to adhere to and work within the parameters of the objectives and procedures laid down in it.

2. Name of the Association

2.1 The name of the Association is “Association of Spine Surgeons of India”. Its short name is ASSI.

3. Area of Jurisdiction

3.1 The area of jurisdiction of the Association of Spine Surgeons of India shall extend across the entire territory of India.

4. Definitions

4.1 The Association: Association of Spine Surgeons of India

4.2 Association HQ: After the state chapters or city branches are formed, the main association would be called the Association HQ

4.3 The Year: Financial year has to be from 1st April to 31st march, academic year can be from 1st Jan to 31st Dec if the core committee decides so.

4.4 Annual Conference: ASSICON

4.5 Member: Any person who is accepted & enrolled with the Association as a Life Member, Life member (VAAS), Applicant Member, Active member, International Member, Associate Member or as an Honorary Member.

4.6 General Body: General Body means the supreme authority of the Association and shall consist of all members of the Association entitled to vote, including Life Members, VAAS Members, and Active Members, whose membership is valid, subsisting, and in good standing as on the date of the General Body Meeting, in accordance with this Constitution and the applicable Rules and Bye-laws of the Association.

4.7 GBM: Meeting of the General Body when called as per defined process, is called General Body Meeting (GBM)

4.8 Annual GBM: The Meeting of the General Body called towards the end of the calendar year within 30 days, where important & essential activities like Election of the EC & office bearers, presentation of the Annual report including the accounts, approval of the budget, appointment of the auditor for the next year, declaration of the next Annual conference etc. besides the regular issues on the agenda are undertaken. The handover to the next team also takes place at the Annual GBM. This may be combined with the Annual Conference of the Association (ASSICON).

4.9 Special or Requisition GBM: If 50 % members of the association request the President to call a GBM on a particular issue of concern, the President is expected to discuss within the EC and honour the request of the members. However, if for some reason, the President / Secretary fail to call the GBM within 15 days of the request, the requisitioners can themselves call the GBM. That GBM shall be called a Special GBM or Requisition GBM. It is only the President who should be authorized to call the Special GBM. -

4.10 Executive Committee (EC): The group of members elected to execute day to day functions of the Association and conduct activities for furthering the interests of the Association are called Executive Committee or EC.

4.11 Core Executive Committee or Core EC: It should be consists of President (Present & immediate past), Secretary (Present & immediate past), President Elect & Jt. Secretary & Treasurer.

4.12 Nomination and Constitution Committee:

- **4.12.1** The Nomination and Constitution Committee shall consist of the Immediate Past President (Chairperson), the President, the President-Elect, and two Past Presidents immediately preceding the Immediate Past President.
- **4.12.2** The Immediate Past President shall be the Chairperson of the Nomination and Constitution Committee and shall also function as the Returning Officer for all elections conducted during his term.

5. Objectives

5.1 The Association is a nonprofit organization established with the following Objectives:

- **5.1.1** Maintaining the profile (identity profile, address, professional profile, email, phone number, NMC registration profile) along with the application of the members so enrolled. This may be maintained in an Excel sheet on the computer or as a scanned copy of the membership register or both. Maintaining the profile is to be done by the members themselves in the directory on the website. Member details

cannot be shared with non-members except with the explicit written approval of the EC.

- **5.1.2** Safeguarding the professional interests of the members
- **5.1.3** Framing guidelines on different clinical situations to help the members in their day-to-day clinical practice
- **5.1.4** Guiding & helping members who face any medico-legal issues
- **5.1.5** Framing a protocol for helping members in case of medico-legal difficulties
- **5.1.6** Assisting the law makers, the government authorities and other professional associations in all matters related to management of Spinal ailments.
- **5.1.7** Helping the members in updating of their knowledge & skills by organizing CMEs, Seminars, Workshops etc every quarter.
- **5.1.8** Organizing educational courses for the members & their support assistants, by way of Certificate courses, Diploma courses & Fellowships for surgeons and short skill development courses for Surgeons, Anaesthesiologists, Pain Physicians, Nurses, technicians, Physiotherapists etc., if required
- **5.1.9** Sharing knowledge & skills with other surgeons in India & Abroad, in a manner as decided by the members
- **5.1.10** Education of General Physicians, General Surgeons & other Doctors who approach the association for such programs
- **5.1.11** Encouraging Rehabilitation programs and educating/training/ helping rehabilitation professionals and other care providers, in a manner as decided by the members
- **5.1.12** Public Education programs on issues related to spine
- **5.1.13** Interaction with instrument industry for any specific requirements of instrumentation development, in a manner as decided by the members
- **5.1.14** Guiding & helping the members in research in the field of Spine Surgery

6. Association Office

6.1 The office of the ASSI was previously functioning at the Department of Orthopedics, All India Institute of Medical Sciences (AIIMS), Ansari Nagar, New Delhi – 110029. The Association has subsequently shifted its working office, and the current working office of

ASSI is situated at: ASSI Secretariat, C/o Indian Spinal Injuries Centre, Sector-C, Vasant Kunj, New Delhi-110070.

7. Legal status

7.1 The Association is a body corporate with its own legal identity, which is separate from its office bearers and members. The association will continue to exist even if the members and / or office bearers change. The association is registered with the Registrar of Societies at Delhi vide Regd. Number: 34432 dated 22nd February 1999.

8. Income & Property of the Association

8.1 Members and office bearers have no ownership rights in the property or other assets of the Association, solely by virtue of their being members or office bearers.

8.2 The income and property of the association shall be used solely for the promotion of its stated objectives and shall not be paid or distributed directly or indirectly to any person or member or office bearer, except as reasonable compensation for services rendered to the association or reimbursement of actual costs or expenses reasonably incurred on behalf of the association.

9. Taxation

9.1 The association shall comply with the taxation laws – whether direct taxes or indirect taxes, as applicable from time to time, with the help and guidance from experts.

10. Powers of the Association

10.1 The association shall have the same powers as that of a company under the company's Act, as amended from time to time. Such powers include:

- **10.1.1** To institute or defend any legal or other proceedings and to settle any claims
- **10.1.2** To take professional help & guidance from experts in any field, in any matter, in the best interests of the Association.
- **10.1.3** To prudently invest funds of the Association, exclusively for the benefits of the Association.
- **10.1.4** To buy, attain, maintain, manage, lease, sell or in any way deal with property and assets of the association, in the best interests of the Association.

- **10.1.5** To obtain or donate and transfer the property and assets of the association to public benefit organization with similar objectives, in a manner as decided by the members.
- **10.1.6** To coordinate with NGOs & Associations with similar objectives for projects of direct / indirect interest to the members
- **10.1.7** To use the property or assets of the association as security for borrowing for the purposes of the association
- **10.1.8** To exercise all the management and executive powers ordinarily vested in the Board of Directors of a company
- **10.1.9** To carry out all the powers and authority of the Association in India and any other part of the world

11. Membership

11.1 Categories of Membership: The Association shall have the following categories of membership:

- **11.1.1 Existing Members:** Life Member, Life Member with Value Added Annual Subscription (VAAS), Associate Life Member, Honorary Life Member
- **11.1.2 New Members:** Applicant Member, Active Member, Associate Member, International member, Honorary Life Member

11.2 Existing Life Members: All members who have already been admitted as Life Members prior to the amendment proposed in January2025 and adopted in January 2026 shall continue to remain Life Members with full voting rights. Their membership status, rights, and privileges shall remain unaffected by the new membership rules by amendment in January 2026 .

11.3 Value Added Annual Subscription (VAAS):

11.3.1 Life Members may opt for the Value Added Annual Subscription (VAAS) upon payment of the prescribed subscription fee.

- **11.3.2** Members subscribing to VAAS shall, in addition to their basic membership rights, be eligible for benefits including, but not limited to, the following:
    - **11.3.2.1** Subscription to official ASSI publications and e-journals
    - **11.3.2.2** Eligibility for holding designated official positions, where applicable

- **11.3.2.3** Concessions or rebates in registration fees for ASSI-organized conferences and events
- **11.3.2.4** Eligibility for research grants, awards, fellowships, and multicentric research projects
- **11.3.2.5** Eligibility for presentation of papers at ASSI academic events

- **11.3.3** The subscription amount, duration, and renewal cycle under the Value-Added Annual Subscription (VAAS) for Life Members (the same as prescribed for Active Membership) will be Rupees Four Thousand Five Hundred (₹4,500/-) plus applicable Goods and Services Tax (GST), payable for a period of three (3) years, after which renewal shall be mandatory. The duration of membership and the quantum of the Membership Fee applicable to VAAS Members may be reviewed, revised, or modified by the Executive Committee, in whole or in part, from time to time, in accordance with the policies and resolutions of the Association, and shall be fixed or revised by the Executive Committee, with approval of the General Body wherever applicable.
- **11.3.4** The specific benefits under VAAS may be reviewed, modified, added, or withdrawn by the Core Executive Committee from time to time to ensure relevance and value to members.
- **11.3.5** In the event that a Life Member fails to renew the VAAS subscription: The member shall cease to be a VAAS Member; The member shall lose all facilities and benefits associated with the VAAS category; and the member shall continue as a Life Member with voting rights only, without entitlement to any VAAS-related facilities or privileges. A grace period of three (3) months from the due date of renewal shall be permitted for VAAS renewal. Failure to renew within the grace period shall result in automatic discontinuation of VAAS benefits, without further notice.
- **11.3.6** For the purpose of determining eligibility for any VAAS membership benefits, the tenure to be considered will be a continuous term and no credit will be given to lapsed tenure as VAAS member.

11.4 Applicant Members:

- **11.4.1** All new applicants seeking membership of the Association shall, upon fulfilment of eligibility criteria and payment of the prescribed fee of Rs. 5000 plus GST (Five thousand) be enrolled as Applicant Members for a mandatory period of two (2) years.

- **11.4.2** During this period, Applicant Members shall be entitled to all academic, educational, and professional benefits of ASSI membership; however, they shall not have voting rights and shall not be eligible to contest elections.

11.5 Progression to Active Membership:

- **11.5.1** Upon completion of a minimum period of two (2) years as an Applicant Member, the member shall be eligible for consideration for upgradation to Active Membership only if the following conditions are fulfilled:
    - **11.5.1.1** The Applicant Member must have attended at least one (1) Annual General Body Meeting (AGM) of the Association; and
    - **11.5.1.2** The Applicant Member must have attended at least two (2) ASSI programs in physical (live) mode, which include ASSICON and ICS.
- **11.5.2** In the event the Applicant Member fails to fulfil the above criteria at the completion of the two-year period, the member shall not be upgraded to Active Membership. Such member shall be required to renew Applicant Membership for an additional period of two (2) years, after which upgradation to Active Membership shall be considered only upon fulfilment of the previously stipulated criteria. Such a member shall be eligible to progress to Active Membership, subject to ratification at the Annual General Meeting (AGM).
- **11.5.3** A grace period of three (3) months shall be allowed for renewal If renewal is not completed within the grace period, the individual's membership with the Association shall stand lapsed automatically, without the requirement of any further notice.
- **11.5.4** If an applicant member after fulfilling the required criteria has not applied for active membership within the stipulated grace period, he can reapply to be an active member, fulfilling the following criteria:
    - **11.5.4.1** That he/she attended at least one GBM where his candidature will be ratified and the active membership will start from the end of that GBM
    - **11.5.4.2** He/she pays the entire outstanding fees for the period he had not applied to be active member

11.6 Active member:

- **11.6.1** All applicant members become active members after ratification by the GBM and become so the day after GBM.

- **11.6.2** The fee, duration, and renewal cycle for Active Membership will be Rupees Four Thousand Five Hundred (₹4,500/-) plus applicable Goods and Services Tax (GST), payable for a period of three (3) years, after which renewal shall be mandatory. The duration of membership and the quantum of the Membership Fee applicable to Active Members may be reviewed, revised, or modified by the Executive Committee, in whole or in part, from time to time, in accordance with the policies and resolutions of the Association, and shall be fixed or revised by the Executive Committee, with approval of the General Body, wherever applicable.
- **11.6.3** An Active Member shall enjoy all rights and privileges of ASSI membership, including voting rights, in accordance with the provisions of this Constitution.
- **11.6.4** If an active member does not renew his membership, he ceases to be active member of the Association and will be considered as dormant member.
- **11.6.5** The member can apply again to be an active member by paying the stipulated fees and the membership has to be ratified in the GBM. He then regains his active membership from the next day of GBM (the member cannot participate in the election process at that particular GBM)
- **11.6.6** However, an individual whose membership has lapsed under this provision may subsequently apply for renewal of membership without being required to undergo the process applicable to an applicant member, provided such renewal is sought in accordance with the rules of the Association.
- **11.6.7** Upon such renewal after lapse, the member's membership tenure shall be deemed to commence afresh, and no prior period of membership shall be counted for the purposes of tenure, eligibility, seniority, voting rights, or holding of office under this Constitution.

11.7 Associate Members:

- **11.7.1** Persons other than qualified Spine, Orthopaedic, or Neurosurgery professionals registered with the Medical Council of India (MCI) / National Medical Commission (NMC), such as anaesthesiologists, bio-mechanical engineers, physiotherapists, nurses, and technicians interested in the field, may be enrolled as Associate Members.
- **11.7.2** The Membership Fee applicable to Associate Members shall be Rupees Forty five hundred (₹4500/-) plus applicable Goods and Services Tax (GST), payable for a period of three (3) years, after which renewal shall be mandatory. The duration of membership and the quantum of the Membership Fee applicable to Associate

Members may be reviewed, revised, or modified by the Executive Committee, in whole or in part, from time to time, in accordance with the policies and resolutions of the Association.

- **11.7.3** Associate Members shall not have voting rights and shall not be eligible to contest elections.

11.8 International Member:

- **11.8.1** Spine surgeon who are not Bonafide citizens of India and are qualified Orthopaedic, or Neurosurgery professionals registered with their Medical Council may be enrolled as International Members.
- **11.8.2** The Membership Fee applicable to International Members shall be 150 USD payable for a period of three (3) years, after which renewal shall be mandatory. The duration of membership and the quantum of the Membership Fee applicable to Associate Members may be reviewed, revised, or modified by the Executive Committee, in whole or in part, from time to time, in accordance with the policies and resolutions of the Association.
- **11.8.3** International Members shall not have voting rights and shall not be eligible to contest elections.

11.9 Honorary Life Members:

- **11.9.1** Any person whose admission, in the opinion of the Executive Committee, is considered an honour to the Association may be admitted as an Honorary Life Member.
- **11.9.2** No membership fee shall be charged from Honorary Life Members, and they shall not have voting rights.
- **11.9.3** The Secretary shall maintain proper documentation of such admissions along with the relevant Executive Committee resolutions.

11.10 Privileges of Members:

- **11.10.1** All Life Members and Active Members shall have the right to vote in the affairs of the Association.
- **11.10.2** Applicant Members, Associate Life Members, Associate Members, International Members and Honorary Life Members shall not have voting rights.

- **11.10.3** Members who have subscribed to the Value-Added Services (VAS / VAAS) shall be entitled to avail themselves of the value-added benefits as notified by the Association from time to time.
- **11.10.4** Life Members with active VAAS subscriptions and Active Members shall be provided secure login access to the official website of the Association and shall be entitled to view academic and administrative material uploaded therein.
- **11.10.5** Every Life Member and Active Member shall have the right to inspect the records of the Association and to obtain photocopies thereof, subject to the following conditions:
    - **11.10.5.1** A written request shall be submitted to the Secretary at least seven (7) days in advance, in the prescribed format, clearly stating the purpose and scope of inspection; and
    - **11.10.5.2** Applicable charges for photocopying or documentation, as fixed by the Executive Committee from time to time, shall be paid in advance.
    - **11.10.5.3** Provided that access to records shall be subject to confidentiality and data-protection obligations, and the following safeguards shall apply:
        - **11.10.5.3.1** No member shall be entitled to inspect or obtain copies of records containing personal, sensitive, financial, medical, contractual, or legally privileged information, except to the extent permitted by law or specifically authorized by the Executive Committee;
        - **11.10.5.3.2** Information obtained through inspection shall be used solely for Association-related purposes and shall not be disclosed, published, shared, or commercially exploited in any manner;
        - **11.10.5.3.3** The Association shall have the right to mask, redact, or withhold portions of records where disclosure may compromise privacy, confidentiality, legal compliance, or the legitimate interests of the Association or its members;
        - **11.10.5.3.4** Any breach of confidentiality or misuse of information shall be treated as misconduct and may invite disciplinary action in accordance with the provisions of this Constitution and applicable law.

11.11 Termination of membership:

- **11.11.1** Membership may be terminated by resignation. A member may at any time resign his membership by giving due notice in writing after paying his dues if any.
- **11.11.2** Membership may be terminated by removal of name on account of non-payment of subscription after due notice.(if any)
- **11.11.3** In the event that an Applicant Member does not fulfil the prescribed eligibility criteria for upgradation to Active Membership, such member shall be required to renew his Applicant Membership within the stipulated period. Failure to renew the Applicant Membership or apply for active membership within the stipulated period shall render the membership liable to termination by the Executive Committee, in accordance with the provisions of this Constitution.

11.12 Right to Vote:

- **11.12.1** Whereas Life members and Active Members have voting rights, Applicant members, associate members , international members & honorary members do not have any voting rights.
- **11.12.2** No member shall be entitled to vote if his fee is not fully paid by the date on which the election is announced, or a meeting has been called.

11.13 Register of Members:

- **11.13.1** The Association shall maintain a Register of all its members containing their main identification details as also the registered address, email ID & mobile phone number. The NMC/SMC registration number and passport size photographs of the members will also be preserved.
- **11.13.2** All membership data shall also be stored as on website and also as scanned copies on computers.
- **11.13.3** The members will be allotted a membership number and conveyed the same. This number shall remain the same if he remains the member of the association.
- **11.13.4** The scanned copies of the Register will be stored on the secretary's computer and updated every six months.
- **11.13.5** The members' data may also be stored on an Excel sheet for filtration, easy retrieval, analysis, and discussions. However, the handwritten register will remain the legally valid register and the scan copies serving as standby alternatives.

- **11.13.6** All Bonafide members of the Association shall have the right to inspect the register in office hours on working days, after a 7 days' notice in writing to the Secretary.

12. The Executive Committee (EC)

12.1 The Executive Committee (EC) will be the governing body, for day-to-day functioning, accountable to the General Body of the members of the Association. It will be responsible for running the Association, as per the constitution.

12.2 Powers: The EC shall manage the affairs of the Association in accordance with the resolutions of members in the General Body, within the parameters of the constitution of the Association.

12.3 Minimum of fifteen members shall serve on the Executive Committee. More members may be included if considered necessary and approved by the General Body.

12.4 Total EC members: A maximum of fifteen (15) members will be the Executive committee out of which, nine to be elected by the Annual General Body Meeting (GBM), will be regular EC members and six will be office bearers. All elected EC members have to be Active members or VAAS members.

12.5 The office bearers, namely the President, President-Elect, Immediate Past President, Secretary, Past Secretary, Joint Secretary and Treasurer, shall form the Core Executive Committee and shall be deemed to be part of the Executive Committee. The General Body, in a duly convened GBM, may decide the mode of election of EC members, including provisions for geographical representation across the country. The General Body may also decide to increase or decrease the total number of EC members and/or designated office bearers, provided clear reasons are recorded. Any such change, if approved by the GBM, shall come into effect only after the conclusion of the GBM at which it is approved.

12.6 EC members shall hold office for a term of two (2) years. Members completing their term shall retire at the end of the term, and elections shall be conducted for the resulting vacancies. No member shall be eligible to hold the position of Executive Committee member for more than two (2) non-consecutive terms in total.

12.7 Co-opted Members: The President will have the powers to co-opt members to the EC, after intimating the EC about their need for one or more EC meetings. Their participation would be welcome for their inputs, but they shall neither be counted for Quorum, nor will they have voting rights.

12.8 Advisors: The President will have the right to invite one, more or all Past Presidents of the Association for one, more or all meetings of the EC, to benefit from their experience. Somebody other than a past President may also be invited as Advisor for one or more meetings. Their participation would be welcome for their advice & inputs, but they shall neither be counted for Quorum, nor will they have voting rights.

12.9 Executive Committee Meetings: The meetings of the Executive Committee shall be called by the Secretary in consultation with the President. At least 7 days' notice in writing by email must be given to all members stating the date, time, place, and the agenda of the Executive Committee Meeting. The meeting may be held by video-conferencing or con-call or Group Emails or through WhatsApp communication.

13. Election Process

13.1 Election of Executive Committee and Office Bearers

- **13.1.1** All members of the Executive Committee (EC) shall be elected by the members of the Association at the Annual General Body Meeting (AGM / GBM), in accordance with the election procedure prescribed by the Association.
- **13.1.2** Any Life Member (VAAS) or Active Member who has been a member for at least 5 years(continuously) shall be eligible to be nominated as a member of the Executive Committee.
- **13.1.3** Eligibility for nomination to the posts of President, President-Elect, Secretary, Joint Secretary-cum-Treasurer shall require that the member:
    - **13.1.3.1** Is a Life Member (VAAS) /Active Member at the time of nomination; and has completed 10years as member (continuously)
    - **13.1.3.2** Has served as a member of the Executive Committee for a minimum period of two (2) years.
    - **13.1.3.3** Should have organised at least one major event (ASSICON / ICS/ Live operative course) of the association in capacity as an Organising Chairman or an Organising Secretary.

13.2 Election of Executive committee members and Joint secretary cum treasurer

- **13.2.1** Elections shall be conducted for the posts of Executive Committee Members, and Joint Secretary-cum-Treasurer in the Annual General Body meeting.

- **13.2.2** If the number of candidates does not exceed the number of vacancies, all the candidates shall be declared elected unopposed.
- **13.2.3** If the number validly nominated candidates exceeds the number of vacancies, election shall be held. The Nomination committee will decide on the mode, procedure and schedule of election and its decision shall be final and binding.

13.3 Election of the President-Elect and Secretary

- **13.3.1** The above vacant posts shall be notified, and applications shall be invited from eligible members. Interested eligible members may apply for the specific post for which they wish to be considered. A member can apply only for one post.
- **13.3.2** Applications for the posts of President-Elect and Secretary will be reviewed by the Nomination Committee in accordance with the eligibility criteria and the best interests of the Association. The Nomination Committee will set up criteria for selecting/nominating the eligible applicant, and the final recommendation will remain at the discretion of the Nomination Committee. Elections would be called for by the nomination committee in case of multiple eligible candidates, if and when necessary.
- **13.3.3 President-Elect**
    - **13.3.3.1** The Nomination Committee will assess the eligibility, experience, contribution, and overall suitability of each applicant.
    - **13.3.3.2** In considering the post of President-Elect, the Committee will give due consideration to a member who has successfully completed a full term as Secretary of ASSI and fulfils the prescribed eligibility criteria, recognizing the valuable administrative experience gained in that role and recommend for elevation to the post of president elect with the approval of the GBM.
    - **13.3.3.3** The Committee may also, whenever considered appropriate, recommend any other eligible member with significant experience, including a serving or former Executive Committee member who fulfils the prescribed criteria. Such a recommendation may be considered as a lateral entry, should the Nomination Committee deem it to be in the best interests of the Association. If there are multiple applications for lateral entry and the situation arises, the nomination committee will assess the candidates and call for an election if necessary.

- **13.3.4 Secretary**
    - **13.3.4.1** While considering applications for the post of Secretary, the Nomination Committee will take into account the experience gained by a member who has served as Joint Secretary, recognizing the familiarity with the day-to-day functioning and administrative processes of the Association that such a role provides. The Joint secretary may be recommended for elevation to the post of secretary with approval of the GBM.
    - **13.3.4.2** However, all eligible applicants shall be considered on their individual merit, experience, and suitability, and the final recommendation shall remain at the discretion of the Nomination Committee.

13.4 Election Process Stages

- **13.4.1** All elections shall ordinarily be conducted during the Annual General Body Meeting. The election process shall include the following stages:
    - **13.4.1.1** Formal announcement of elections
    - **13.4.1.2** Declaration of eligible voters
    - **13.4.1.3** Call for nominations
    - **13.4.1.4** Scrutiny and verification of nominations
    - **13.4.1.5** Last date for withdrawal of nominations
    - **13.4.1.6** Declaration of unopposed candidates, if any
    - **13.4.1.7** Conduct of voting for contested posts
- **13.4.2** The actual voting shall generally be timed with the Annual GBM; however, the Executive Committee shall have the discretion to modify the timing or mode of voting if circumstances so require.

13.5 Returning Officer

- **13.5.1** The Chairperson of the Nomination and Constitution Committee shall act as the Returning Officer for all elections.
- **13.5.2** In the event that the Chairperson is unavailable or unable to conduct the elections for any reason, the Secretary, Joint Secretary, or any other member of the Association shall be appointed as Returning Officer by the Executive Committee, ensuring that there is no conflict of interest.

- **13.5.3** The Returning Officer, in consultation with the Core Executive Committee, shall have the authority to appoint a third-party, government-accredited agency to conduct the elections, if deemed necessary.

13.6 Voting Rights and Procedure

- **13.6.1** Only the following members shall be eligible to vote:
    - **13.6.1.1** Life Members
    - **13.6.1.2** Active Members.
- **13.6.2** Voting rights shall be restricted to members who have submitted their Expression of Interest to participate in the General Body Meeting within the prescribed timeline; and are physically present at the GBM at the time of voting.
- **13.6.3** Voting shall always be conducted by secret ballot. It maybe either by paper ballot or electronic voting as decided by the returning officer in consultation with the EC.
- **13.6.4** Any proposal to make any significant modification to the election process shall require approval of the General Body by a two-thirds (2/3) majority of members present and voting.

13.7 Declaration of Results and Record Keeping

- **13.7.1** Election results shall be declared by the Nomination Committee on the same day, or at the latest by the next day following the completion of voting.
- **13.7.2** Individual vote counts shall not be disclosed publicly; however, each candidate shall have the right to know their individual vote tally upon request to the Nomination Committee.
- **13.7.3** All election records shall be safely preserved for a minimum period of five (5) years.

13.8 Term of Office: No member of the Executive Committee shall serve more than 2 non-consecutive terms of 2 years as an EC member. The Term of the President and President Elect shall be 1 years w.e.f. 2027. The Secretary, Joint Secretary and treasurer will be elected for a 2-year term each. The President and the Secretary will serve for a single term of one & two years respectively. They will not be allowed another term, in the same capacity, except under special extra-ordinary circumstances to be decided by the GBM with 2/3rd majority of members present.

13.9 Vacancies: The Executive Committee must as soon as reasonably possible, fill any vacancy that reduced the number of EC members to less than 5. The next GBM must confirm the office bearer so appointed, otherwise it will lapse.

13.10 Co-option: The Executive Committee may co-opt additional non-voting members as it may consider appropriate.

13.11 Resignation, Dis-qualification, and Removal: An Executive Committee member may resign from office in writing. An Executive Committee member shall be dis-qualified from office upon termination of membership to the Association for whatever reasons. A member can be removed from office through a two third majority resolution of the Executive Committee members and presented before a GBM for approval by simple majority.

13.12 Delegation of Powers:

- **13.12.1** The Core Executive Committee has the powers to constitute any number of committees, each with a chairman & members, for better functioning. Whereas the chairman of these committees shall be an EC member, some members of the committees may be EC members or non-EC members. All such committees shall be accountable to the CEC in general and the President in particular. The committees can be dissolved or re-constituted by the core executive committee as & when needed.
- **13.12.2** The Nomination and Constitution Committee shall consist of the Immediate Past President (Chairperson), the President, the President-Elect, and two Past Presidents immediately preceding the Immediate Past President. The Immediate Past President shall be the Chairperson of the Nomination and Constitution Committee and shall also function as the Returning Officer for all elections conducted during his term.
- **13.12.3** The Chairman of the Nomination and Constitution committee, with the help of its members, will be responsible for the interpretation of the constitution in case of any ambiguity, as & when it arises. Also, in case of the need for amendment of any clause in the constitution, this committee headed by the Chairman will be responsible for examining the details of the proposed amendment before it is deliberated in the EC for presentation to the GBM. This has been fixed to prevent arbitrariness in these two sensitive appointments.

14. Office Bearers

14.1 Functions of Office Bearers:

- **14.1.1 Functions of President:**
  - **14.1.1.1** To ensure and supervise the smooth functioning of the Association
  - **14.1.1.2** To safeguard the interests of the Association by following the Constitution, in letter & in spirit
  - **14.1.1.3** To preside over all the meetings of the Association i.e. EC, GBM, AGBM & Special GBM and in other meetings which he attends
  - **14.1.1.4** As chairman of the meeting, exercise the casting vote in the event of a tie at the time of voting
  - **14.1.1.5** To interact with the other professional bodies and the Government agencies, in furtherance of the interests of the Association
  - **14.1.1.6** To interact with the media & other authorities on all matters related to the Association, whenever required. He will have the liberty to delegate this duty to any other person from the EC

- **14.1.2 Functions of the President Elect:** The President Elect will assist the President and perform all the functions of the President in his absence.

- **14.1.3 Functions of Secretary:**
  - **14.1.3.1** Maintaining record of all the members
  - **14.1.3.2** Maintaining / Supervising the official website, journals & newsletters etc. The EC may form a separate committee to help the Secretary in these activities
  - **14.1.3.3** To call meetings of the EC, GBM, AGBM, & Special GBM
  - **14.1.3.4** Be responsible for the entire administration of the Association, notices, letters, minutes, communications etc.
  - **14.1.3.5** Conducting the meetings of the Association after calling the Chairman to call the meeting to order
  - **14.1.3.6** Reminding annual members for renewal of membership
  - **14.1.3.7** Interacting with the members regarding all relevant matters related to the association

- **14.1.4 Functions of Joint Secretary and Treasurer:**
  - **14.1.4.1** The Joint Secretary will assist the Secretary and perform all functions of the Secretary in his absence

- **14.1.4.2** Operation of bank accounts, as a co-signatory, as per procedure defined by the EC
- **14.1.4.3** Treasurer will be responsible for all financial matters of the Association, in coordination with the Secretary. Maintaining accounts, handling financial matters, payment of taxes, submission of returns etc. Handling all legal matters of the Association, in consultation with the President, EC and the GBM
- **14.1.4.4** Treasurer will look after all matters related to accounts, taxation (both direct & indirect), budget and financial audits

- **14.1.5 Functions of the Immediate Past President:** The Immediate Past President will perform an advisory role to help the President and will be the Chair of the Nomination and Constitution Committee

14.2 Conflicting Interests: Any actual, potential or perceived conflict of interest on the part of any member of the Executive Committee, on a matter pertaining to the Association, must be disclosed in writing to the Executive Committee, which shall record the same in the minutes of the meeting. Such member may be requested by the Executive Committee to respond to further questions, if any but shall not vote or use his influence on the matter and shall not be counted for purposes of determining a quorum for the meeting where the voting takes place.

14.3 Confidentiality: All matters pertaining to litigation, security measures, contractual negotiations, employment matters and any other matters deemed confidential by the Executive Committee, must be treated as confidential and only the actual decisions may be disclosed to the general public. However, as far as the Bonafide members are concerned, they will have a right to examine all such documents on an undertaking to observe confidentiality from the rest of the public.

15. Notices of Meetings

15.1 General Body Meeting (GBM) / Annual General Body Meeting (AGM):

- **15.1.1** The Annual General Body Meeting (AGM) of the Association shall be convened once in each calendar year by the Secretary of the Association. The AGM shall ordinarily be held within the first quarter of the calendar year following the completion of the year, and in any case within the time limits prescribed under the

applicable Societies Registration Act.The date of the AGM shall be decided by the Executive Committee (EC).

- **15.1.2** The AGM shall serve as the principal forum for conducting the statutory, administrative, and governance functions of the Association. The formal handover of charge from the outgoing Governing Council to the incoming team shall take place during the AGM. The tenure of the President and other office bearers shall conclude at the AGM, as defined in the Definitions clause.
- **15.1.3** The AGM may, if deemed appropriate by the Executive Committee, be held in conjunction with the Annual Conference of the Association (ASSICON).

15.2 Notice and Convening:

- **15.2.1** At least twenty-one (21) days' prior notice of the AGM shall be given to all members by electronic mail, specifying the date, time, venue, and agenda of the meeting.
- **15.2.2** The Secretariat shall notify all members in advance and may invite Expressions of Interest (EOI) from members wishing to attend and participate in the AGM, if required.

15.3 Participation Requirements:

- **15.3.1** Members intending to participate in the AGM, including participation in elections to various office bearers, shall be required to:
    - **15.3.1.1** Submit their Expression of Interest within the stipulated timeline, as notified by the Secretariat (where applicable); and
    - **15.3.1.2** Ensure that their personal and professional details are duly updated on the official Association website.
- **15.3.2** The Core Executive Committee shall determine and announce the cut-off date for receipt of Expressions of Interest for participation in the AGM.
- **15.3.3** Members who fail to intimate the Secretariat of their intention to attend the AGM within the prescribed timeline may not be permitted to participate in the proceedings of the AGM., however they may attend the GBM.

15.4 Business of the AGM:

- **15.4.1** The essential business of the AGM, which shall be circulated along with the notice, shall include:

- **15.4.1.1** Presidential Address
- **15.4.1.2** Ratification of the Minutes of the previous AGM
- **15.4.1.3** Secretary-cum-Treasurer's Report (brief update on Association activities)
- **15.4.1.4** Accounts and Income Tax status
- **15.4.1.5** Presentation and approval of the Balance Sheet for the last financial year
- **15.4.1.6** Presentation and approval of the Budget for the current financial year
- **15.4.1.7** Appointment of the Statutory Auditor
- **15.4.1.8** Announcement of Association Awards (as applicable)
- **15.4.1.9** Election of Office Bearers
- **15.4.1.10** Ratification of New Members
- **15.4.1.11** Any other matter may be included in the agenda with the permission of the Chair

15.5 Powers of the GBM: A properly convened GBM of the Association is the highest decision-making structure of the Association in the Constitution. The members, in GBM may review, approve, amend any decision taken by the Executive Committee but shall not nullify any decision taken by the Executive Committee in accordance with the provisions of the constitution. For any changes in the Constitution of the Association, the changes recommended by the Executive Committee shall be discussed in the GBM. The amendments based on this discussion shall be moved and discussed in the GBM & clearly indicated in the minutes of the GBM and passed or not passed in the next GBM.

15.6 Procedures at General Body Meetings:

- **15.6.1** The members may regulate their meetings and proceedings as they find fit, subject to the following guidelines:
  - **15.6.1.1** The President shall chair the meetings
  - **15.6.1.2** The General Body Meetings of the Association may be conducted face to face or if approved by the GBM, electronically, which would allow members to present and participate through electronic means.

- **15.6.1.3** If the President is not available or is not able to be present within 15 minutes of the appointed time of the meeting, the President Elect shall chair the meeting. In the absence of both the secretary or the Jt. Secretary, in their absence any member present at the GBM shall elect the chairperson for that meeting.
- **15.6.1.4** The Quorum for the GBM shall be 15 % of the members of the Association.
- **15.6.1.5** If the quorum is not present within 15 minutes of the appointed time of the meeting, the meeting must be adjourned, either to another date within 14 days thereafter with notice to all members of the association of such adjournment or as an alternative, the GBM can be resumed after 15 minutes of adjournment.
- **15.6.1.6** A resolution put to the vote shall be decided by means of a show of hands or by ballot. A vote by ballot can be demanded by not less than 30% (thirty percent) members present.
- **15.6.1.7** Each member present shall be entitled to one vote.
- **15.6.1.8** Except where the constitution requires a higher threshold, questions arising shall be decided by a simple majority of votes. Should there be an equality of votes, the chairperson shall have a casting vote.
- **15.6.1.9** Proper minutes and attendance records must be kept of all GBMs. The chairperson must sign the minutes which shall be circulated by email, to all members on their registered emails and shall also be available for inspection or copying by any member of the Association, after adequate notice to the secretary or the joint secretary.

15.7 Special or Requisition GBM (SGBM / RGBM): 50 % of the members can request the President to call a special GBM on a single issue of importance. If the President or Secretary fail to call this special GBM within 7 days, 50 % members of the EC can call such a GBM in the next 3 days. In such a meeting, only that single issue will be discussed. No other matter will be allowed to be discussed or decided in the Requisition meeting.

15.8 EC Meetings: Meetings of the Executive Committee whether conducted conventionally or through video-conferencing or con-calls or through emails or WhatsApp group are called EC Meetings. All EC meetings have the agenda and minutes recorded though not necessarily communicated to the association members. However, all major

decisions of far-reaching implications to the members, shall be presented in the GBM for approval.

15.9 Core Executive Committee Meeting:

- **15.9.1** The President shall convene a meeting of the Core Executive Committee at least twice a quarter and additionally at the written request of any 50% of the members of the Core Executive Committee. Quorum for the meetings of the Core Executive Committee shall be two-thirds of the serving Core Executive Committee members. Those unable to attend physically but participating through video conference or con-call will be counted for quorum purposes.
- **15.9.2** If no quorum is present, the Core Executive Committee may take no decision except to disperse and reconvene after 15 minutes. During this period, absent members may be contacted to attend or send their consent via email, video conferencing, or con-call. If the quorum is met through these methods, the meeting will proceed. If the quorum is still not met, the meeting will be adjourned to a later date, or in urgent cases, decisions may be taken but will require approval at the next Core Executive Committee meeting convened soon after.
- **15.9.3** Each Core Executive Committee member present or represented via email, video-conferencing, or con-call shall have one vote. Questions arising shall be decided by a simple majority of votes. In the case of a tie, the President will have the casting vote. Proper minutes and attendance records must be kept for all Core Executive Committee meetings. The chairperson shall sign the minutes, which will be available at all times with the Secretary and Joint Secretary and accessible on the official website for inspection by bona fide members.
- **15.9.4** A resolution signed by all members of the Core Executive Committee shall be valid as if passed at a duly convened meeting, provided the reason for adopting this procedure is documented.
- **15.9.5** The Core Executive Committee may appoint employees under terms and conditions it deems necessary.
- **15.9.6** An official website and/or newsletter may be established to provide relevant information to members.

15.10 ANNUAL MEETING: ASSICON:

- **15.10.1** ASSICON shall be allocated through a bidding process, based on applications submitted by registered State Orthopaedic/Spine Societies or Spine

Societies, subject to eligibility criteria and credentials as determined by the ASSI Executive Committee from time to time.

- **15.10.2** The guidelines, structure, and organizational framework for conducting ASSICON shall be framed and approved by the Executive Committee. The organizing society shall enter into a formal Memorandum of Understanding (MoU) with ASSI governing the conduct of the conference.
- **15.10.3** Only one society shall be permitted to organize ASSICON. Collaboration or joint organization between multiple societies shall not be permitted for conducting ASSI flagship events.
- **15.10.4** The following core organizing positions shall be mandatory for ASSICON:
    - **15.10.4.1** Organizing Chairman (one)
    - **15.10.4.2** Organizing Secretary (one)
    - **15.10.4.3** Treasurer (one)
    - **15.10.4.4** Scientific Committee chair (one)
- **15.10.5** Additional organizing committees may be constituted by the local organizing committee as deemed necessary for the smooth conduct of the conference. In addition to ASSICON, ASSI may organize other academic activities throughout the year, including but not limited to outreach programs, instructional courses, study groups, workshops, and training programs, as approved by the Executive Committee. ASSI may also publish its own books, monographs, journals, or other academic publications, as and when required and as decided by the Executive Committee.
- **15.10.6 State Chapters and City branches:** The Executive Committee may, with the approval of the GBM, create State Chapters and / or City branches, in a manner as decided by the members. The State Chapters and City branches so formed, shall adopt the constitution and Byelaws of the Association. The Association has the powers to approve the membership structure of the state chapter & city branches and their fee as well as the proportion of sharing of the fee between the HQ, State and the City unit, as the case may be. The State Chapters and the City branches, when formed shall have the freedom to frame their own bye-laws provided they are in consonance with the spirit of the constitution & bye-laws of the Association (HQ) and will be put in effect, prospectively, on the date they are approved by the Association HQ.

16. Finances & Reports

16.1 Bank Accounts: The Executive Committee must open a bank account in the name of the Association, with one or more registered banks.

16.2 Signing: Cheques and other instruments / financial documents requiring signatures on behalf of the Association, shall be signed by at least two persons as co-signatories, authorized by the Core Executive committee.

16.3 Financial year (1st April to 31st March) end: The financial year end of the Association shall be 31st March of each year. However, the taxation returns etc shall be prepared to coincide with the financial year of the Government of India.

16.4 Financial Report: The Executive Committee must ensure that proper records and books of accounts, which fairly reflect the affairs of the Association are kept as per accounting norms. Within 6 months of the accounting year, a report is compiled by an independent practicing auditor registered with the ICAI, stating in his half yearly audit report whether the financial statements of the Association are consistent with its accounting records, the accounting policies are appropriate and have been appropriately applied with, in preparing the financial statements and the Association has complied with the financial provisions of the Association. The final statement shall be prepared at the completion of the year and presented at the Annual GBM.

17. Amendments & Dissolution

17.1 The constitution may be amended, the name of the Association may be changed, the financial year may be changed, the Association may be dissolved by resolution of two thirds of the members present at a General Body Meeting.

17.2 At least 21 days' notice of the meeting stating the nature of the resolution to be proposed, must be given to all the members of the Association.

17.3 Upon dissolution of the Association, after all debts and commitments have been paid, any remaining assets shall not be paid to or distributed amongst members but shall be transferred by donation to some other nonprofit organization, which the Executive Committee (failing which the members in the GBM) considers appropriate and which has objectives similar to the objectives of the Association and shall abide by the provisions of the tax & other laws of the country, in consultation with the auditor.

18. Indemnity

18.1 Subject to the provisions of any relevant law, members, office bearers or appointed delegates of the Association shall be indemnified by the Association for all acts done by them in good faith on its behalf.

18.2 Subject to the provisions of any relevant law, no member of the Association or appointed delegates shall be liable for the acts, receipts, neglects or defaults of any other member or office bearer, or for any loss, damage or expense suffered by the Association, which occurs in the execution of the duties of his or her office, unless it arises as a result of his or her dishonesty or failure to exercise the degree of care, diligence and skill required by law.